

CHAPTER 24

Cotton Act, 1954

ARRANGEMENT OF SECTIONS

Section

1. Functions of Raw Cotton Commission.
2. Repeal of monopoly provisions, and of certain provisions as to members of Commission.
3. Compensation to officers, agents and servants of Commission.
4. Provision for dissolution of Commission.
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An Act to modify the functions of the Raw Cotton Commission, to repeal the monopoly provisions of the Cotton (Centralised Buying) Act, 1947, and to make consequential provision as respects members, officers, servants and agents of the Commission; to make provision for enabling the Commission to be wound up and dissolved; and for purposes connected with the matters aforesaid. [14th April, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Functions of
Raw Cotton
Commission.
10 & 11 Geo. 6,
c. 26.

1.—(1) The following provisions of section one of the Cotton (Centralised Buying) Act, 1947 (in this Act referred to as “the principal Act”), that is to say,—

- (a) in subsection (1) (which provides that there shall be a Raw Cotton Commission who shall be charged with the duty therein mentioned), the words from “who shall” to the end of the subsection,
- (b) subsection (2) (which makes provision as to the quantities, growths, types and qualities of the raw cotton to be bought and imported by the Commission), and
- (c) subsection (4) (which imposes restrictions on the prices to be charged by the Commission),

shall cease to have effect.

(2) The Raw Cotton Commission (in this Act referred to as “the Commission”) shall have power to carry on the business of buying and selling raw cotton, subject to the provisions of subsection (3) of the said section one (which provides that the

prices at which the Commission sell raw cotton shall be such as may seem to them best calculated to further the public interest in all respects) and subject to, and with the powers conferred by, the other provisions of the principal Act (as amended by this Act) and the following provisions of this Act.

(3) Section twelve of the principal Act (which relates to the general powers of the Commission) shall have effect as if the reference to the functions of the Commission under section one of the principal Act were a reference to their functions under the last preceding subsection; and in section sixteen of the principal Act (which authorises temporary borrowing by the Commission for meeting their obligations and discharging their functions under the Act) the reference to the functions of the Commission under that Act shall be construed as including a reference to their functions under the last preceding subsection.

(4) In this section the expression "raw cotton" has the same meaning as in the principal Act.

(5) This section shall be deemed to have come into operation on the first day of September, nineteen hundred and fifty-three.

2.—(1) Sections two and three of the principal Act (which with certain exceptions confer on the Commission a monopoly over the importation of raw cotton into the United Kingdom and its sale for delivery within the United Kingdom), section four of the principal Act (which provides penalties for contraventions of sections two and three), and section twenty-two of the principal Act (which provides for the making of regulations for enabling the Commission to obtain information), shall cease to have effect.

Repeal of monopoly provisions, and of certain provisions as to members of Commission.

(2) Subsection (4) of section five of the principal Act (which specifies the qualifications required for appointment as a member of the Commission), and subsection (2) of section six of that Act (which imposes temporary restrictions on the business activities of persons ceasing to be independent members of the Commission), shall cease to have effect.

3.—(1) The Commission, in such cases as may be determined under this section, shall make compensation payments, of such amounts as may be so determined, to or in respect of persons who, at any time after the passing of this Act, or before the passing of this Act, suffer or have suffered loss of employment as officers, agents or servants of the Commission in consequence of the modification of the functions of the Commission effected by section one of this Act, or in consequence of any diminution of, or other change in, the activities of the Commission corresponding with that modification of the Commission's functions.

Compensation to officers, agents and servants of Commission.

(2) References in this section to the determination of matters thereunder are references to the determination thereof by the Commission with the approval of the Board of Trade and the Minister of Materials (hereafter in this Act referred to as "the Board" and "the Minister" respectively).

(3) Any compensation payments made by the Commission before the passing of this Act to or in respect of persons such as are mentioned in subsection (1) of this section shall, if approved by the Board and the Minister after the passing of this Act, be treated as payments made by virtue of that subsection.

(4) In this Act the expression "compensation payment" means any payment by way of compensation for loss of employment.

Provision for
dissolution of
Commission.

4.—(1) The Board and the Minister, if at any time they are satisfied that it is in the public interest to do so, may by order jointly provide for the winding up and dissolution of the Commission; and if such an order is made the following provisions of this section shall have effect.

(2) The Board and the Minister, after consultation with the Treasury, shall jointly give directions for the making, out of moneys belonging to the Commission, of compensation payments, of such amounts as may be determined by or under the directions, to or in respect of persons who suffer loss of employment as officers, agents or servants of the Commission after the coming into operation of the order, and who satisfy such conditions in respect of their service with the Commission as may be specified in the directions.

(3) Sections eight and twenty of the principal Act (which relate respectively to annual reports and to the accounts of the Commission) shall not have effect as respects any period after the end of the last complete financial year of the Commission before the coming into operation of the order; but the order shall include such provision as the Board and the Minister consider appropriate as to the accounts of the Commission in respect of any period between the end of that year and the coming into operation of the order, and in respect of the period between the coming into operation of the order and the dissolution of the Commission, and as to laying before Parliament a statement of any such accounts.

(4) The power of the Minister to make periodical advances to the Commission under section fifteen of the principal Act shall continue to have effect notwithstanding the coming into operation of the order; and for the purposes of that section the outgoings of the Commission properly chargeable to revenue account shall include the expenses of the winding up.

(5) On the winding up of the Commission—

- (a) if any moneys belonging to the Commission are determined in accordance with the order to be moneys which are not required, and will not be required, to meet the liabilities of the Commission and the expenses of the winding up, those moneys shall be paid to the Minister, and shall be paid by the Minister into the Exchequer;
- (b) if the assets of the Commission are determined in accordance with the order to be insufficient to meet the liabilities of the Commission and the expenses of the winding up, the Minister shall out of moneys provided by Parliament make good the deficiency in such manner as may be provided by the order.

References in this subsection to the liabilities of the Commission include references to any compensation payments which, by virtue of any directions under subsection (2) of this section, are payable out of moneys belonging to the Commission.

(6) The Minister, if it appears to him to be expedient for the purposes of the winding up of the Commission, may with the consent of the Treasury by order provide for the cancellation of all or any of the liabilities of the Commission in respect of initial advances (as defined by section fourteen of the principal Act) and in respect of periodical advances under section fifteen of that Act, including any periodical advances made after the coming into operation of the order mentioned in subsection (1) of this section.

5.—(1) Any power conferred by this Act to make orders shall be exercisable by statutory instrument, and no order shall be made under this Act unless a draft of the order has been laid before Parliament and has been approved by a resolution of each House of Parliament. Supplementary and financial provisions.

(2) Any order under this Act may be varied by a subsequent order thereunder.

(3) Anything required or authorised by or under this Act to be done by, to or before the Board may be done by, to or before the President of the Board, any Minister of State with duties concerning the affairs of the Board, any secretary, under-secretary or assistant secretary of the Board, or any person authorised in that behalf by the President.

In this subsection the expression "Minister of State" means such a Minister of the Crown as is referred to in section two of the Re-election of Ministers Act, 1919, as explained by the House of Commons Disqualification (Declaration of Law) Act, 1935. 9 & 10 Geo. 5.
c. 2.
25 & 26 Geo. 5.
c. 38.

(4) There may be issued out of the Consolidated Fund any increase attributable to the provisions of this Act in the sums authorised to be so issued under subsection (1) of section twenty-one of the principal Act for enabling the Minister to make periodical advances to the Commission; and the provisions of subsection (2) of that section as to the raising of money by the Treasury for the purpose of providing sums to be so issued, and of providing for their replacement, shall have effect accordingly.

Short title
and extent.

6.—(1) This Act may be cited as the Cotton Act, 1954.

(2) It is hereby declared that this Act extends to Northern Ireland.

CHAPTER 25

An Act to amend section two of the Pensions (Increase) Act, 1944, by abolishing the limit of pension up to which increases may be made under that section and substituting ten per cent. for the scale of increases authorised by that section; and for purposes connected therewith. [14th April, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendment
of s. 2 (1) of
Pensions
(Increase) Act,
1944.

7 & 8 Geo. 6.
c. 21.

10 & 11 Geo. 6.
c. 7.

1.—(1) In subsection (1) of section two of the Pensions (Increase) Act, 1944 (which, as amended by subsection (3) of section one of the Pensions (Increase) Act, 1947, authorises the increase, in accordance with a scale set out in the said subsection (1), of pensions payable under the Superannuation Acts up to a limit of seven hundred and eighty-seven pounds ten shillings a year) there shall be substituted, for the words from “in accordance with the following scale” to “seven hundred and eighty-seven pounds ten shillings a year”, the words “by ten per cent.”.

(2) Subsection (3) of section one of the said Act of 1947 is hereby repealed.

(3) In relation to a pension which is, or would but for this subsection be, increased by virtue of the foregoing provisions of this section, subsection (2) of section three of the said Act of 1944 (under which an increase under that Act is reduced or excluded where the amount of a pension has been increased by reason of an addition by way of war bonus or similar allowance